

The complaint

Mr E is unhappy about Aviva Insurance Limited declining his claim for storm damage under his home insurance policy.

What happened

Mr E found that a leak was coming in through his roof, so he made a claim. Aviva considered the claim but declined it. It said the damage was caused by wear and tear and not storm damage. Unhappy with this Mr E brought his complaint to this service.

Our investigator didn't uphold the complaint. She said the evidence provided by the drone inspection arranged by Aviva was persuasive. Our investigator accepted Aviva's stance that there was no sign of storm damage and the most likely cause of the damage was wear and tear.

Mr E didn't accept this and asked for his case to be passed on to an ombudsman for a final decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

When looking at storm damage cases we ask three questions:

- were there storm conditions on or around the date of the claim?
- is the damage consistent with storm damage?
- were the storm conditions the main cause of the damage?

If the answer to any of these questions is “no” then the claim won't succeed.

For question one Mr E said he didn't use the room where the damage first occurred very often, so it was difficult to pin down an exact date for the damage. So, that means there's no clear answer for this point.

However, regarding question two Aviva is clear that the damage was consistent with wear and tear. It arranged the drone inspection as Mr E was unhappy with the original decision to decline the claim. Aviva said the drone could get more detail and get to into the most awkward places to get images. Based on the evidence from the drone Aviva referred to the slipped, chipped and displaced tiles. It said this problem had been occurring over a period of time. Aviva confirmed this was consistent with general weathering over time. It also referred to significant evidence of previous repair attempts and therefore on-going leaks. Aviva said there was nothing to suggest a one-off storm event. So, the answer to question two is “no”.

This means the answer to question three is also “no”.

The answer to all three questions needs to be “yes” for a valid storm claim. So, based on the evidence I’ve seen I think Aviva acted reasonably when it declined to deal with the claim.

I note that at one stage Mr E suggested he would go down the “legal route” with Aviva. I can confirm Mr E is perfectly entitled to take court proceedings against Aviva as long he doesn’t accept my decision.

My final decision

I don’t uphold this complaint.

I make no award against Aviva Insurance Limited.

Under the rules of the Financial Ombudsman Service, I’m required to ask Mr E to accept or reject my decision before 16 September 2020.

John Quinlan
Ombudsman